

		The motion as to the fifth and seventh causes of action is DENIED. <u>Sixth Cause of Action for Failure to Prevent Discrimination, Harassment, and Retaliation</u> Defendant contends the failure to prevent discrimination, harassment, and retaliation claim fails as a matter of law because (1) Plaintiff has no actionable claim for disability discrimination, harassment or retaliation; and (2) Plaintiff failed to exhaust her administrative remedies on her failure to prevent claim. The first argument fails as the disability discrimination and retaliation claims remain viable. The second argument also fails. As discussed above, Plaintiff's CRD complaint alleges broad claims of discrimination and retaliation. Claims of failure to prevent discrimination and retaliation would appear to be reasonably related to said conduct and likely to be uncovered in the course of a CRD investigation. (<i>Wills</i>, supra, 195 Cal.App.4th at 15; <i>Okoli</i>, supra, 36 Cal.App.4th at 1617.) Defendant points to no authority holding a claim for failure to prevent discrimination and retaliation is outside the scope of a CRD complaint alleging discrimination and retaliation. The motion as to the sixth cause of action is DENIED. Plaintiff shall give notice.
205	<i>Kim vs. Longo</i>	Plaintiff Philip Kim's demurrer to the answer is SUSTAINED, in part, and OVERRULED in part, and Plaintiff's motion to strike is GRANTED in part and DENIED in part. Defendants Jason Longo, Thirtyone Labs, LLC and TBH Supply, LLC shall have leave to file and serve an amended answer within 10 days.

Demurrer

1st, 7th, 8th, 9th, 12th and 14th affirmative defenses:

These affirmative defenses are uncertain, ambiguous and unintelligible in light of the allegations and causes of action pled in Plaintiff's complaint. (See Code of Civ. Proc. § 430.20, subd. (b); *South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732 [evaluation of an answer requires examination of the complaint].) The demurrer is SUSTAINED as to these affirmative defenses.

2nd, 6th, 13th, 15th, 16th affirmative defenses: The answer fails to state facts sufficient to constitute these affirmative defenses and does not give fair notice of the issues to Plaintiff. (See Code of Civ. Proc. § 430.20, subd. (a); *In re Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-13 [standard]; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50.) The demurrer is SUSTAINED as to these affirmative defenses.

3rd, 4th, 10th, 11th and 17th affirmative defenses: While these affirmative defenses do not assert any new matter and merely negate the elements of Plaintiff's claims, Plaintiff fails to explain why or how these allegations prejudice Plaintiff. (See Code of Civ. Proc. § 452 [allegations in pleading are liberally construed], § 475 [minor pleading defects that do not affect the substantial rights of the parties are ignored].) The demurrer is OVERRULED as to these affirmative defenses.

5th affirmative defense: Defendants identify the applicable code sections but do not identify the subdivisions. (See Code of Civ. Proc. § 458.) The demurrer is SUSTAINED as to this affirmative defense.

18th, 19th, 20th and 21st affirmative defenses: These affirmative defenses are appropriate in light of the allegations and causes of action pled by Plaintiff and give fair notice of the issues to Plaintiff. (See Code of Civ. Proc. § 430.20, subd. (a); *South Shore Land Co. v. Petersen, supra*, 226 Cal.App.2d at 732; *Doe v. City of Los Angeles, supra*, 42